

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: May 21, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

SECOND AMENDED SCHEDULING ORDER

On April 25, 2025, the parties filed a Joint Status Report and Motion to Extend Deadlines stating that technical issues had stalled their document review and sought a four-month extension to the scheduling order. Dkt. 34. I held a status conference on May 20, 2025 to ascertain the status of the parties' document productions, determine the extent to which technical issues continued to cause delay, and to discuss other issues related to the schedule.

At the conference, Complainant confirmed that it has produced all non-privileged material in response to Respondents' initial requests for production, as stated in the March 7, 2025 Joint Status Report. Dkt. 33. Complainant is currently working through approximately 3,000 potentially privileged documents. Respondents represented that they have produced approximately 35,000 documents, with an additional 16,000 documents to be produced subject to redactions in accordance with the parties' ESI protocol. Production of these documents has been slowed by problems with the interface between Respondents' redaction software and the review platform, which limits the number of attorneys who can work on these documents at one time. Respondents' counsel represented that the production will be complete within several weeks.

While I find good cause to extend the schedule, given the technical difficulties and the importance of the outstanding discovery to the proceeding, I cautioned that deponents' and attorneys' scheduling conflicts would not be considered good cause for an extension in the future. I will grant the parties the extension they requested to complete fact discovery, but it is their responsibility to make sure witnesses are available during the time below. Even though the exact scope of each deposition may not be fully known at this time, the identity of the most likely deponents can be ascertained after collectively processing, reviewing, and producing

hundreds of thousands of documents. At the conference, I instructed the parties to schedule depositions now rather than waiting until they had reviewed all the opposing party's documents and to provide me with any subpoenas promptly.

I also advised the parties, given the volume of factual material they are reviewing and assembling, that they should prepare their cases with an eye toward the usability of that information. Organizing data into tables that can be sorted (by container number, date, nature of the disputed charge, links to evidence, or other relevant characteristics) can expedite the presentation of evidence and resolution of the proceeding.

Finally, the parties' proposed schedule expanded the expert-discovery timeline. No reason was offered for this proposed change, other than a reference to the volume of material, which was known to the parties at the time of the first scheduling order, and so this request is denied. The parties are **ORDERED** to abide by the following amended schedule:

Complete depositions of fact witnesses	August 29, 2025
Last day to serve interrogatories, requests for admission, and RFPs	August 29, 2025
Disclosure of initial expert reports, if any	September 19, 2025
Disclosure of rebuttal expert reports, if any	October 10, 2025
Complete expert depositions	October 31, 2025
Close of discovery	October 31, 2025
Joint Status Report due	November 3, 2025
Complainant's initial brief, proposed findings of fact, and appendix	December 2, 2025
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	January 5, 2026
Complainant's reply and responses to proposed findings of fact	January 23, 2026

SO ORDERED.

**ALEX
CHINTELLA**

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ALEX CHINTELLA
Date: 2025.05.21
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Alex M. Chintella
Administrative Law Judge